

23PSCV00378 23PSCV00378

County: los-angeles

Division: Civil Law and Motion

Department: H

Hearing date: 2026-09-02

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=EA%20%2CH%2C09%2F02%2F2026

Source SHA-256: e8118f6e025e1eeb42f6cb23794238e8109b11d9e0cd3159bffaef734d1d82ae6

Case Number: 23PSCV00378 Hearing Date: September 2, 2026 Dept: H

Benjamin Kirk, et al. v. Lucy Gao Seh, et al., Case No. 23PSCV00378

ORDER ON APPLICATION FOR ORDER RE: SALE OF REAL PROPERTY

Plaintiffs/Judgment Creditors' Application for an Order Re: Sale of Real Property is DENIED WITHOUT PREJUDICE.

Background

Plaintiff Benjamin Kirk filed this action on February 7, 2023; Kirk and his co-plaintiff Butterfield Property, LLC filed the operative First Amended Complaint ("Operative Complaint" or "FAC") on July 17, 2023.

The Operative Complaint names as defendants: (1) Lucy Gao Seh, an individual ("Lucy"); (2) Jonathan Seh, an individual ("Jonathan"); (3) Edington Assets LLC ("Edington"); and (4) the Peter Seh Living Trust 2001 (the "Trust").

The Operative Complaint does not name any individual defendant as trustee of the Trust.

On May 8, 2025, the Court entered judgment for Plaintiffs in the amount of \$5.1 million as against Lucy, Jonathan, and the Trust.

The clerk of court issued writs of execution on the judgment on January 30, 2026 and April 10, 2026 directed to Lucy, Jonathan, and the Trust, still naming no individual as trustee.

On April 17, 2026, Plaintiffs filed an Affidavit of Identity identifying the Trust as "Lucy Seh, Trustee of Peter Seh Living Trust 2001."

On April 22, 2026, the clerk issued a new writ of execution, with the judgment amounting to approximately \$6.5 million with interest, against Lucy, Jonathan, and the Trust "aka Lucy Seh, Trustee of the Peter Seh Living Trust 2001."

On May 6, 2026, the Sheriff levied on Lucy and the Trust's interest in the property located at 204 S. Bushnell Ave., Alhambra, California ("the Property").

On June 23, 2026, Plaintiffs filed an Application for Order of Sale for Lucy and the Trust's interest in the Property.

On June 29, 2026, the Court set an Order to Show Cause ("OSC") Re: Sale of Dwelling for August 13, 2026; at Plaintiffs' request, the OSC was later rescheduled for September 2, 2026.

On August 20, 2026, "Lucy Gao Seh, solely in her capacity as trustee of the Peter Seh Living Trust dated September 13, 2002," filed an objection in response to the Court's OSC.

On August 27, 2026, Plaintiffs filed a response in support of their application for sale. On August 28, 2026, they filed a supplemental response and request for judicial notice. On August 31, 2026, they filed a Notice of Errata to their Response, correcting two typographical errors ("Judgment Debtors" misidentified as "Judgment Creditors").

On September 1, 2026, Defendants filed a reply to Plaintiffs' response.

Legal Standard

Under Code of Civil Procedure section 700.180, real property of a judgment debtor may be levied upon. (Code Civ. Proc., § 700.180(a)(1).) However, where the real property levied is the judgment debtor's dwelling, the dwelling may not be ordered sold to enforce a money judgment except " 'pursuant to a court order for sale'" obtained under sections 704.710 through 704.850 of the Code of Civil Procedure, detailing the "Homestead Exemption" that applies to debtors' dwellings. (Wells Fargo Financial Leasing, Inc. v. D&M Cabinets (2009) 177 Cal.App.4th 59, 67 (Wells Fargo), quoting Code Civ. Proc., § 704.740(a).)

Discussion

Lucy opposes the application on the primary ground that the FAC and judgment fail to identify her or any other individual as a trustee of the Trust. She relies on *Portico Management Group, LLC v. Harrison* (2011) 202 Cal.App.4th 464 (Portico). Portico stands for the principle that a trust is not a person, or even an entity, and it cannot be party to litigation or be treated as a judgment debtor. (Portico, *supra*, at pp. 473-476.)

Lucy states the principle correctly. The Trust is not a judgment debtor. As a result, the Affidavit of Identity filed by Plaintiffs was ineffective.

This does not leave Plaintiffs without a remedy. They may argue – via a motion under Code of Civil Procedure section 187 – that Lucy Gao Seh as an individual, clearly named in the Judgment, may also be identified as a judgment debtor in her capacity as trustee. However, the judgment currently identifies only Lucy Gao Seh in her individual capacity and the Trust as a named entity, without identifying any person as trustee of that Trust.

Lucy cannot be held liable in her capacity as trustee unless and until she is expressly added to the judgment through a proper motion under CCP section 187, and a trust itself cannot be named as a judgment debtor because it is not a legal entity. As such, the existing judgment against "the Trust," standing alone, is legally ineffective.

Conclusion

The

Application Re: Sale of Real Property is DENIED WITHOUT PREJUDICE. The Court notes that because the judgment in this matter is currently on appeal, this Court lacks jurisdiction to entertain any motion to amend the judgment, including a motion under Code of Civil Procedure section 187, unless and until jurisdiction returns to the trial court. However, Plaintiffs/Judgment Creditors may seek to amend the judgment to properly identify individual defendant Lucy Gao Seh in her capacity as trustee once appellate proceedings conclude.